

ORIGINAL

(S E R V E D)
(APRIL 21, 1993)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

WASHINGTON, D.C.

April 21, 1993

DOCKET NO. 89-26

THE GOVERNMENT OF THE TERRITORY OF GUAM, ET AL.

v.

SEA-LAND SERVICE, INC. AND
AMERICAN PRESIDENT LINES, LTD.

**ORDER ADMITTING INTO EVIDENCE VERIFIED STATEMENTS
OR AFFIDAVITS OF PERSONS NOT REQUESTED TO APPEAR FOR
CROSS-EXAMINATION AND DEPOSITION EXCERPTS, AND OTHER MATTERS**

Hearing will commence on April 27, 1993, for cross-examination of witnesses designated by the parties for that purpose. On March 31, 1993, respective sponsoring counsel were requested to prepare an appropriate draft order admitting into evidence verified statements (direct testimony) of affiants (persons) who have not been requested to appear for cross-examination. Such drafts have been furnished.

IT IS ORDERED that:

(1) The statements of the following persons not called for cross-examination are admitted in evidence:

<u>Name of Person</u>	<u>Date on Statement</u>
Governor Ada	9/14/92
Senator Santos	8/31/92
Joaquin Perez	8/31/92
Joe Bradley	8/31/92
Frank Reyes	9/1/92
Fred Nishihara	8/31/92
Frank Borja	8/31/92
John Camacho	8/31/92
T. Roy Sullivan	8/31/92
Robert Gaskins	8/31/92
Paul McComas	8/31/92
David King	8/31/92
Dan Cox	8/31/92
Wally Tranowski	9/8/92
Tito Sablan	9/11/92
Barry Honda	9/10/92
John Limtiaco	9/14/92

(2) The sworn deposition testimony or affidavits by the following persons, submitted as part of complainants' direct testimony as to which there was no request for cross-examination, is admitted in evidence:

Complainants' Motion for Summary Judgment (West Coast/Guam)

Ex. 24:	Ronald Reighter
Ex. 26:	Richard Findlay
Ex. 27:	Ali Nikkhoo
Ex. 28:	Vijay Vakil
Ex. 29:	Gary Vincent
Ex. 30:	Martin J. Gaspar
Ex. 48:	Charles Slayman

Ex. 50:	David Arsenault
Ex. 51:	Robert Livingston
Ex. 60:	Dennis Hoselton
Ex. 61:	Ali Nikkhoo
Ex. 73:	Todd Burson
Ex. 74:	Lu Burton
Ex. 75:	Steve Newsom
Ex. 76:	Jim McKenna
Ex. 79:	Craig Wallace
Ex. 81:	William Kenwell
Ex. 82:	Al Cherry
Ex. 83:	Pamela Lake
Ex. 95:	Joe Liang
Ex. 96:	Ronald Harryman
Ex. 97:	Hal Camicia
Ex. 98:	Clinton Monroe
Ex. 110:	Ronald Reighter
Ex. 114:	Jeanne Sebring
Ex. 115:	Jack McGonegle
Ex. 145:	William Niemann
Ex. 158:	Eugene J. Cherney

Complainants' Motion for Summary Judgment (Hawaii to Guam)

Ex. 1:	Kurt Pruitt
Exs. 3, 4:	John Lintiacio

(3) Respondent Sea-Land Service, Inc. has submitted the designation of the following deposition transcript pages as being pertinent or otherwise necessary for continuity and they are admitted into evidence:

Arsenault:	pp. 57 and 88
Burson:	pp. 26 and 29
Burton:	pp. 37-38, 61, 99
Camicia:	pp. 22-28
Cherry:	p. 146
Findlay:	pp. 102-103, 121-124, 134-136, 161-164
Harryman:	pp. 34, 35
Hoselton:	pp. 65, 150, 171

Livingston:	pp. 15-17, 86-87
McKenna:	p. 38
Nikkhoo:	(I) pp. 38-39, 42, 117, 225, 254-255 (II) pp. 34, 67-68
Pruitt:	p. 281
Reighter:	(I) pp. 25-26, 194, 197-199
Slayman:	pp. 76, 114 and corrections for pp. 35 and 141
Vakil:	pp. 29-30, 194-195
Vincent:	p. 138
Wallace:	pp. 147-148
Wong:	p. 88
Zito:	pp. 15, 153-154, 163.

(4) Respondent Sea-Land Service, Inc. has submitted the following deposition excerpts as part of its written direct case and they are admitted into evidence:

Attachments to Hudson Declaration

Ex. 1:	Paul McComas
Ex. 1:	John A. Limtiaco
Ex. 2:	Lorenzo C. Alfague
Ex. 2:	Peter R. Barcinas
Ex. 2:	Rosa R. Castro
Ex. 3:	Peter R. Barcinas
Ex. 3:	Daniel A. Cox
Ex. 3:	Joaquin P. Perez
Ex. 3:	Wayne Francis Brown
Ex. 4:	Robert W. Gaskins
Ex. 4:	David King
Ex. 4:	Ernest P. Villaverde
Ex. 4:	Paul McComas
Ex. 4:	Fred S. Nishihara
Ex. 4:	Thomas R. Sullivan
Ex. 4:	Wayne Francis Brown
Ex. 4:	Daniel A. Cox
Ex. 4:	Joaquin P. Perez
Ex. 5:	David King
Ex. 5:	Paul McComas
Ex. 5:	Fred S. Nishihara
Ex. 6:	Joaquin P. Perez

Ex. 6: Wayne Francis Brown
Ex. 7: David King
Ex. 7: Fred S. Nishihara
Ex. 7: Paul McComas

Attachments to Coleman Declaration

Ex. 1: Corrections to
McComas Deposition
Ex. 2: Paul McComas

(5) On brief, counsel may present argument as to the weight to be afforded the statements of the aforementioned persons.


Frederick M. Dolan, Jr.
Administrative Law Judge